

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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MICHAEL PRYOR,

Plaintiff,

COMPLAINT

-against-

Jury Trial

P.O. DANNY GUZMAN, P.O. ANDERSON ORTIZ,
JOHN DOE "SUPERVISOR",

Defendants.

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Plaintiff MICHAEL PRYOR by and through his attorneys, Vik Pawar, and
Robert Blossner, Esqs., respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1983, 1985 and 1988 for violations of his civil rights, as secured by statutes and the Constitution of the State of New York and the United States.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§ 1983, 1985 and 1988, and the First, Fourth, Sixth and Fourteenth Amendments to the United States and New York Constitutions.

3. Jurisdiction is found upon 28 U.S.C. §§1331 and 1343.

VENUE

4. Venue is properly laid in the Southern District of New York under 28 U.S.C. § 1391(b), in that it is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in the matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff is a citizen of the United States, and at all relevant times was a resident of the County of Bronx, City and State of New York.

7. The Individual Defendants are officers who acted under the color of state law and are sued in their individual, supervisory and official capacities.

FACTS

8. On October 31, 2013, around 8 p.m., plaintiff was inside a parking lot with his friend who needed plaintiff's assistance with his vehicle that was legally parked.

9. Plaintiff's friend had asked plaintiff to help screw on license plates on his car because he was physically unable to do so.

10. The parking lot was located at 157th street and St. Nicholas Avenue inside a New York City Housing Authority ("NYCHA") building.

11. As plaintiff and his friend worked on the car, defendants Guzman and Ortiz pulled in in their unmarked car and started questioning plaintiff and his friend.

12. Plaintiff and his friend both informed the officers that they had a legal

right to be there, the friend was the rightful and legal owner of the vehicle and they had committed no crime.

13. Despite their valid reasons, plaintiff and his friend were stopped, frisked and eventually arrested for “trespassing.” The defendant officers also falsely claimed that they found some marijuana on plaintiff’s person.

14. Defendants then transported plaintiff to the 33rd precinct with tightly cuffed handcuffs which restricted blood-flow and caused unnecessary pain, where he was strip-searched and booked on the false charge of trespassing and possession of marijuana.

15. Based on the falsity of the charges plaintiff spent 24 hours in custody before he was released ROR by the judge.

16. Defendants Guzman and Ortiz seized plaintiff without probable cause and based on falsified evidence had him strip-searched at the precinct.

17. Defendant John Doe “Supervisor” looked at the falsified paperwork prepared by the named defendants and even though he knew that plaintiff did not possess marijuana and was not trespassing, signed-off on the police paperwork that was then forwarded to the District Attorney’s Office for plaintiff’s prosecution.

18. Defendants’ individual and collective conduct deprived plaintiff of liberty and he was not free to leave due to the pending charges against him which required his appearance in Court at the risk of being arrested for failure to appear.

19. Plaintiff made repeated trips to the Court before the false charges against him were thrown out on or about September 2014.

AS AND FOR THE FIRST CAUSE OF ACTION

(Unlawful Seizure and Malicious Prosecution under the 4th Amendment)

20. Plaintiff was stopped, frisked and seized without probable cause.

21. Plaintiff suffered injuries when he was seized and when defendants Ortiz and Guzman tightened the handcuffs placed on plaintiff.

22. Plaintiff was held without just cause and did not consent to the confinement. Plaintiff was unnecessarily strip-searched even though the charges did not warrant a strip-search.

23. Plaintiff spent over 24 hours in jail and was aware of his confinement.

24. Defendant Guzman and Ortiz drafted a criminal court complaint and defendant John Doe "Supervisor" signed off on the false charges contained in the complaint.

25. The complaint was then forwarded to the District Attorney's Office who initiated prosecution against plaintiff.

26. All defendants were aware that there was no probable cause to seize plaintiff let alone initiate criminal proceedings against him. Therefore, they acted with malice.

27. In addition, all defendants failed to make an attempt to retract the false charges and this inevitably led to the continued prosecution of plaintiff. Defendants' actions constituted malicious prosecution because they knowingly filed false and unsubstantiated charges against Plaintiff, failed to drop them, or inform the District Attorney's office of the falsity of the charges and instead pursued the charges knowing full well that the charges were not only false but trumped up, and fabricated by the

defendants. In addition, the individual defendants failed to show up for court hearings and unnecessarily prolonged plaintiff's liberty.

28. The criminal proceedings terminated in plaintiff's favor when the charges against him were dismissed on September 2014.

29. As a result of the aforementioned conduct of all three Defendants, Plaintiff's constitutional right to be free from unlawful seizure and malicious prosecution were violated.

AS AND FOR A SECOND CAUSE OF ACTION
(Denial of Right to Fair Trial)

30. Plaintiff repeats, reiterates, and realleges each and every allegation in the foregoing paragraphs with the same force and effect as if fully set forth herein.

31. All Defendants fabricated probable cause and detained plaintiff.

32. All Defendants then arrested plaintiff and had him transported to the 33rd precinct.

33. The false fabricated charge denied plaintiff the right to a fair trial or a hearing at the arraignment and during repeated court appearances. Plaintiff was forced to appear in Court because of the false charges and his failure to appear would have resulted in a warrant issued for his arrest.

34. The false statements by all defendants restricted plaintiff freedom of movement until the criminal charges were thrown out in September 2014 because the false statements were forwarded to the District Attorney's Office which caused plaintiff to be prosecuted.

35. But for the false charges, that snared plaintiff for over a year since his seizure, plaintiff would not have endured numerous court appearances and suffer a deprivation of his rights under the First, Fourth, Sixth and Fourteenth Amendments to the U.S. Constitution.

36. As a result of defendants' conduct, plaintiff suffered injuries.

AS AND FOR A THIRD CAUSE OF ACTION
(Conspiracy under Section 1985)

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if fully set forth herein.

38. Defendants targeted plaintiff and conspired with each other to deprive plaintiff of his civil rights and equal protection under the laws.

39. The individual defendants knew that plaintiff was not trespassing and was simply helping his friend fix a vehicle in a parking lot with permission. Yet they agreed to overlook each other's misconduct and entered into an implicit agreement to seize plaintiff.

40. The individual defendants conspired with one another to hide each other's misconduct and failed to inform the District Attorney that plaintiff was innocent of trespassing and other charges.

41. The individual defendants had a vested interest in the cover-up and the ensuing conspiracy because they knew they had falsely sworn out a complaint against plaintiff and supervisor would have been held accountable and recanting it would subject them to perjury, prosecution, disciplinary action, loss of overtime and or transfer to a less desirable precinct.

42. In addition, because of their ranks, status and vested interests, the intra-corporate conspiracy doctrine immunity is inapplicable to them.

43. As a result, plaintiff suffered constitutional injuries.

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

(A) full and fair compensatory damages in an amount One Hundred Thousand Dollars for each and every cause of action for plaintiff against defendants (individually or collectively) or as determined by a jury:

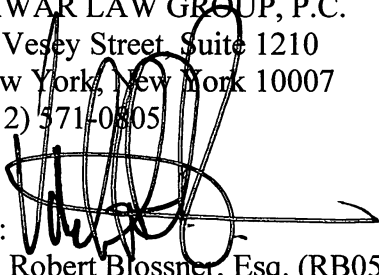
(B) punitive damages in an amount to be determined by a jury;

(C) reasonable attorney's fees and the costs, expenses and disbursements of this action; and

(D) such other and further relief as appears just and proper.

Dated: New York, New York
July 17, 2017

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